

Date: 4th March 2018
To: Belinda.carter@ndgarchitects.com
Cc:
From: Shawn Leishman

Re: Alterations to 1 Wayward Place, Ormkirk

Dear Belinda,

In hindsight, I believe there are several issues here regarding the Architect's Obligations as noted inside the Standard Professional Services Contract 2018 that we did not exercise and as of such we are in tort of negligence for services provided to the in experienced client.

"The Architect/Consultant has various obligations under the Contract in exercising the reasonable skill, care and diligence to be expected from an Architect/Consultant experienced in the provision of such Services for projects of similar size, nature and complexity of the Project".

I have listed my response below: -

1. Firstly, with the departure of Sven Berg on the project, NDG should have appointed a qualified and experienced Architect on the job as the project is situated within the Ormkirk Conservation Area therefore carries a degree of complexity that I may not be experienced enough to handle. This is a requirement under **Standard 2.2 of the ARB Architect's Code:**

"You are expected to make appropriate arrangements for your professional work in the event of incapacity, death, absence from, or inability to, work.

2. Michael failed to brief me thoroughly regarding the project leading to me not knowing the full picture regarding the project. "Throwing me in at the deep end" has violated **Standard 2.1 of the ARB Architect's Code:**

"You are expected to be competent to carry out the professional work you undertake to do, and if you engage others to do that work they should be competent and adequately supervised"

3. There was improper use of the title "Architect" when I was introduced to the clients leading to a breach of **The Architect's Act 1997 Part IV** making it a criminal offence as NDG and I have offered services as an Architect even though I am not registered on the Architects Registration Board having fully known that the clients specifically asked for an Architect to look after the project.
4. NDG has been contracted to take the project up to Stage 3 to obtain planning application, therefore, me visiting the site and advising the clients on the flue installation has breached the **Standard 6.1 of the ARB Architects Code:**

"You are expected to carry out your work with skill and care and in accordance with the terms of your engagement"

As of such, the contractor has proceeded to install the flue as per my instructions therefore making NDG Architects liable for the current situation (proceeding with works without prior planning/conservation area consent). Once again this is in tort of negligence and violates the **Planning (Listed Buildings and Conservation Area) Act 1990** causing us to commit another criminal offence.

5. The client contacted myself via "WhatsApp" and such communication methods are not contractually binding therefore, I should not have proceeded with the site visit requests as it is out with our contractual agreement. Any matter should be submitted through formal letter/email to NDG which can then be provided and charged as 'additional work'.
6. The contractors proceeded the works in accordance with instructions issued other than in writing under **Clause 3.12 (SBC16)**.

3.12.1 *Where the Architect/Contract Administrator gives an instruction otherwise than in writing, it shall be of no immediate effect but the contractor shall confirm its terms in writing to the Architect/Contract Administrator within 7 days, and if he does not dissent by notice to the Contractor within 7 days from receipt of the Contractor's confirmation, it shall take effect as from the expiry of the latter 7 day period.*

3.12.3 *If neither the Contractor nor the Architect/Contract Administrator confirms such an instruction in the manner and time stated but the Contractor nevertheless complies with it, the Architect/Contract Administrator may at any time prior to the issue of Final Certificate confirm it with retrospective effect.*

This means that in terms of the Contract, the Contractor is unable to claim for loss and/or expenses / extension of time from the client as a result of this situation as they should have ensured that the necessary planning consent has been obtained prior to commencement of work.

I am deeply regretful of this situation and I hope that we will be able to resolve this matter without any severe repercussions.

I will see you tomorrow at the meeting.

Thanks, and Best Regards,

Shawn Leishman

NDGArchitects Ltd.

Date: 4th March 2018
To: Belinda.carter@ndgarchitects.com
Cc:
From: Shawn Leishman

Re: New Apartments in Madchester for Lycragran Developments Limited

Dear Mr Hillock,

We at NDG Architects are very excited at the prospect of working together on this upcoming and exciting project.

However, in light of your recent email dated 06 August 2018, there are several matters which I would like to raise before proceeding any further.

Firstly, I would like to bring your attention to the **ARB Architect's Code Standard 4.4** as it sets out the principal requirements expected of an architect to ensure that before any professional work is undertaken a written agreement with the client is in place which adequately covers:

- The contracting parties
- The scope of the work
- The fee or method of calculating it
- Who will be responsible for what
- Any constraints or limitations on the responsibilities of the parties
- The provisions for suspension or termination of the agreement, including any legal rights of cancellation
- A statement that adequate and appropriate insurance cover is in place as specified by ARB
- The existence of any Alternative Dispute Resolution schemes that the contract is subject to and how they might be accessed
- That a complaints-handling procedure is available on request
- That the architect is registered with the Architects Registration Board and that subject to this Code.

As you have further expressed the interest to utilise a bespoke form of agreement in appointing NDG, we are unfortunately unable to accept this email as instruction to proceed as it fails to cover the requirements of Standard 4.4 as above. Furthermore, we would have to consult our own solicitors/practice insurers upon receiving the bespoke form of agreement from your good office as a standard office procedure.

Seeing as Sandra will be unavailable for months which is unacceptable to the project schedule, if you would like, we could consider using the **RIBA Standard Professional Services Contract 2018 for Architectural Services**.

I hope you understand that this matter is in the best interest for both our companies to create a fair balance between the architect and client.

If you would like to proceed with our professional advice, please do not hesitate to contact us and we will make the necessary arrangements to move forward as soon as possible.

We at NDG look forward to working with you in due course.

Thank You and Best Regards,

Belinda Carter

NDGArchitects Ltd.

Interoffice Memo

Date: 4th March 2018
To: James.noble@ndgarchitects.com
Cc:
From: Shawn Leishman

Re: Proposed residential refurbishment/conversion of former office building and upper storey extension.

Dear James,

Please find my responses in italics to your questions below: -

1. Do we go for pre-application again?

As this is a Grade II listed building, the advice would definitely be to go for pre-application again considering the occurrence of the heated Planning Committee meeting last month with many objections.

2. What happens if planning approval is refused?

Taken at face value if the application is rejected before being accepted – then investigate reasons and re-submit; if read as ‘refused’ then: consult with LPA regarding reasons, amend and resubmit or appeal with the Secretary of State via Planning Inspectorate.

3. Do we need any additional specialist consultants?

Historic building Consultants/Advisers, QS, Structural Engineer, M&E Engineer, Planning Consultant, Interior Designer and Principal Designer.

Supporting disciplines may include Environmental Consultant (hazardous materials), Ecological Consultant, Archaeological Consultant, Topographical Surveyor (site and measured buildings surveys), asbestos surveyor.

4. What are the potential risks in terms of cost, programme and detailed design bearing in mind Iffy Developments has already begun the previously approved internal refurbishment works on site?

As Iffy Developments are acting as both the developer and contractors for the project, the cost will be bared by Iffy Development themselves. The programme and detailed design will be the responsibility of Iffy Development as NDG have only been appointed to carry out works up to Stage 3 of the project which is to obtain planning consent.

5. What about the planning conditions on the approved scheme?

*As the client is asking for a whole additional floor to be added which affects the whole elevation of the building, this constitutes as a substantial material amendment, therefore, a new planning application would need to be submitted under **Section 70** of the **Town and Country Planning Act 1990** superseding the approved scheme.*

The application will take anywhere from 8 weeks to 13 weeks and not more than 26 weeks as a planning guarantee.

With regards to the uPVC window being installed without prior planning/listed building consent, Iffy Developments have committed a criminal offence where all involved in organising or executing the work can be prosecuted under Planning (Listed Building and Conservation Areas) Act 1990. It is advisable that Iffy Developments reinstate the windows to their original condition and apply for listed building consent properly. It must be brought to attention that the Local Planning Authority Enforcement Team may take the case to the courts.

I hope the information I have provided will suffice. Should you require any more information, please let me know.

Best Regards,

Shawn Leishman

Thanks, and Best Regards,

Shawn Leishman

Date: 4th March 2018
To: Belinda.carter@ndgarchitects.com
Cc:
From: Shawn Leishman
Re: **Madchester Towers**

Dear Belinda,

Please find my responses corresponding to your requests below: -

1. Lump Sum Fee

[illegible]

The total lump sum fee came up to **£22,384** (excluding VAT) as you can see from the table above based on how long a relevant member will undertake the commission. After the fees have been reduced by 30% as per your request, the total lump sum fee 'at cost' now comes up to **£15,668.80** (excluding VAT).

2. Gantt Chart showing the initial programme for this project up to Stage 3

[illegible]

I hope the above information will suffice. I have sent you a separate email containing a confidential memo considering the pros and cons of doing the work at 'cost'.

Thanks, and Best Regards,

Shawn Leishman

NDGArchitects Ltd.

Interoffice Memo

Date: 4th September 2019
To: Belinda.carter@ndgarchitects.com
Cc:
From: Shawn Leishman
Re: **Pros and Cons of working 'at cost' – Madchester Towers**

Dear Belinda,

Please find attached below my thoughts beginning with the Pros and Cons for taking this work and charging 'at cost':-

Pros

- Opportunity to maintain/enhance a good working relationship with IR Developments and Mr Jeff Tracy
- Chance to open a commercial portfolio with IR Developments
- Potential of continuation of collaboration with IR Developments on future projects

Cons

- 5.5% fee chargeable on the basis of successfully gaining planning approval seems onerous. Lose out on profit for something that is out with our control as we cannot predict what the Local Planning Authorities will base their decision on even though we do not expect any major problems from them.
 - The cost to cover overheads and resources required for the project may not be enough from the fees we obtain i.e.
- **Normal Rate:** 5.5% of £7,000,000 = £385,000
 - **Normal Rate for Stage 1-3:** £154,100
 - **Charge out rate at cost for Stage 1-3:** £15,668.80 **(The fee should be closer to 107,870. Amend the fee calculation at cost)**

Percentage Fee Calculation		NDG Architects Ltd Wharf Mill, Madchester, MAD PPA	
Total Contract Value (£)		7,000,000.00	
Fee (%)		5.50%	
Fee (£)		385,000.00	
RIBA Job Stage	Description	% paid per job stage	Fee to be paid
1	Strategic definition Preparation of Brief	5%	19,250
2	Concept Design	15.00%	57,750
3	Developed Design (Planning submission)	20.00%	77,100
4	Technical Design	35.00%	134,750
5	Construction	20.00%	77,000
6	Hand over and close out	4.00%	15,400
7	In use	1.00%	3,850
TOTAL	TOTAL	100.00%	385,109

Items for appointment letter should cover the following: -

- A brief description of the project
- A scope of work to be undertaken
- The fee (excluding VAT) to be paid within the time period, and when it is to be paid.
- Allowable expenses
- The date of start of work and the period covered by the letter
- The right of the client to use material generated in the time period
- A statement that the letter is an interim arrangement to be substituted by a contract (RIBA Professional Services Contract 2018)
- A statement that there is no guarantee to extend the appointment beyond the time period stated
- The amount of Professional Indemnity Insurance cover required for the project
- The named staff or sub-consultants who will carry out the commission
- The consultants reporting lines within the client organisation
- A statement allowing termination of the agreement at will by either party, but with a fair proportion of the fee to be paid by the client as well as properly incurred and recorded expenses
- A statement confirming that unresolved disputes will be settled by adjudication under English Law.

The initial Program and Budget should also be included within the letter to which I have attached in my previous email to you.

Thanks, and Best Regards,

Shawn Leishman

Interoffice Memo

Date: 4th March 2019
To: Sue.allen@ndgarchitects.com
Cc: [Belinda Carter and Sue Allen](#)
From: Shawn Leishman

Re: Spoke Retail Park: Client Company Administration

Dear Sue,

From the letter, I understand that the clients Lycragran Development Limited will be going into administration. While the letter only addresses the contractors, it would seem that the event would directly affect NDG as well since we have been appointed as Lead Consultant and Contract Administrators for the project. However, a company going into administration seems to be a common thing in the construction industry and given Lycragran Developments Limited track record, it may not be cause for much worry. However, in order to safe guard ourselves, we have to be prepared under the terms and conditions as set out in the agreement as preparation for the worst-case scenario. I have listed a few clauses that are relevant to us should a suspension or termination of our services be required.

For NDG Architects

As we have an agreement with the client, Under **Clause 9.2** of the RIBA Standard Professional Services Contract 2018, *"the Architect/Consultant may suspend or terminate performance of any or all of the Services and other obligations under the Contract by giving the client at least 7 days' written notice and stating the grounds on which it intends to do so. Such grounds are limited to:"*

9.2.1 *the Client's failure to pay any fees or other amounts due by the Final Date for Payment unless, where applicable....*

9.4 *If the reason for a notice of suspension or termination arises from a default:*

9.4.1 *which is remedied, the Architect/Consultant shall resume performance of the Services and other obligations under the Contract within a reasonable period*

9.4.2 *which is not remedied by the defaulting Party, the Contract shall be ended by the non-defaulting Party giving at least 7 days' further written notice*

9.7 *Performance of the Services and/or other obligations may be terminated immediately by notice from either Party if:*

9.7.1 *the other Party becomes bankrupt or is subject to a receiving or administration order, and/or goes into liquidation, and/or becomes insolvent, and/or makes any arrangements with creditors*

Under **Clause 9.8**, we would be due any *“payment of any outstanding fees and other amounts due plus the reasonable expenses of the Architect/Consultant”* provided we have complied with **Clause 6.3** in delivering a copy of drawings and documents to the Client.

For the Contractors/Project

I will draft a letter to the client's referencing the contract which will be attached to this memo for your onward perusal.

Thanks, and Best Regards,

Shawn Leishman

NDGArchitects Ltd.

Central Madchester,

England.

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email@ndgarchitects.com

4th of September 2019

Hollyrood Bakeries
Madchester

Dear Mr Jamie Cobb

Subject: Spoke Retail Park – Administration of Lycragran Developments Ltd.

Dear Mr Dohisbest,

We are writing to you regarding the above subject matter and in correspondence to your letter to the Contractor dating 17 August 2018. As Contract Administrators on the project, we would like to draw your attention to your contractual position in relation to the project and the contractors.

N.B. The references below will be made in accordance to the JCT Standard Building Contracts 2016 with Quantities (SBC16) which is currently in place for the project.

You mention that Lycragran Developments Limited will be going into administration subsequently undergoing restructuring of the company which also affects funding arrangements for the project. As stated in **Clause 8.1.1.1**, *“a company becomes Insolvent when it enters administration within the meaning of Schedule B1 to the Insolvency Act 1986”*.

As of such it is our obligation to inform you that under **Clause 8.10.1** (Insolvency of the Employer), *“the contractor may by notice to the Employer terminate the Contractor’s Employment under this Contract”*.

Furthermore, **Clause 8.10.3** stipulates that all Contractors obligations are to be suspended as from the date the Employer becomes Insolvent.

Therefore, NDG will be contractually obligated to issue an Architect’s Instruction upon the Insolvency of Lycragran Developments Limited to the contractor instructing them to cease all work on site.

You are also to take note of **Clause 8.12.5** whereby *“the Employer shall pay to the Contractor (or vice versa) the amount properly due in respect of the account within 28 days of its submission to the other Party, without deduction of nay Retention. Payment by the Employer for any such materials and goods as are referred to in Clause 8.12.3.4 shall be subject to those materials and goods thereupon becoming the Employer’s property.”*

However, once the company has completed its restructuring process with adequate funds in place to continue the project, under **Clause 8.3.2**, the contractor may be reinstated on terms agreed by both Parties.

As of such, as mentioned above, kindly please advise us on the date that the company entered into administration in order for us to issue an A.I. to the contractors and also to process any claims for loss and/or expenses incurred during the contract prior to administration.

Should you have any further issues, please do not hesitate to contact us. We hope to hear from you soon.

Yours Sincerely,

Sue Allen

Interoffice Memo

Date: 4th March 2018
To: Belinda.carter@ndgarchitects.com
Cc:
From: Shawn Leishman
Re: **Madchester Towers**

Dear Belinda,

In response to your email dated 20th August 2018, please find my responses to your Questions below: -

- 1. The basis of the original agreement (we used the headings you previously prepared in your confidential memo to me (exam day one – question four) about our key terms and conditions in the agreement with Mr Tracy). Did you draw attention specifically to copyright?**

*Generally, we will retain copyright in the information produced for the project in accordance with the law (**Clause 6 – Copyright and Licence, Standard Professional Services Contracts 2018**). However, the clients are given a conditional licence to copy and use the information for your project which is given to them in PDF format unless agreed otherwise within the contract.*

*I mentioned that the client has the right to use the material generated in the given time period as the client will have the licence to copy and use such of the drawings and documents for which all fees and other amounts properly due have been paid, only for the purposes related to the construction of the Project or its subsequent use or sale, but they may not be used for reproduction of the design for any part of any extension of the Project or any other project without the Architect/Consultant's written consent (**Clause 6.3** of our Professional Service Contract).*

- 2. What action we should take, given the situation we find ourselves in?**

It depends on the terms and agreement written within the Letter of Appointment and whether or not it was stipulated that NDG was to carry out any more work after obtaining planning application and the terms for termination of the agreement.

Therefore, for now, we can but review the terms within our Letter of Appointment ourselves and if need be, with our solicitor to figure out the best way forward for premature termination by the current employer.

- 3. What we might learn from this situation, what the Practice should, ideally, have included in our original appointment letter, and therefore what we would do next time?**

- We should have included in writing that the client had agreed to offer us the job at our normal rate of 5.5% if planning consent was obtained. A statement allowing termination of the agreement at will by either party, but with a fair proportion of the fee to be paid by the client as well as properly incurred and recorded expenses

For our next project, we should ideally use a Professional Services Contract as one provided by RIBA for projects of this scale to avoid any onerous clauses that may result from using a bespoke appointment.

4. Are there any professional issues for the Mr Hood's architects "Snapitup"?

Snapitup should (under Component 2.2, Principle 3 of the RIBA Code of Professional Conduct), make reasonable enquiries to establish whether or not any other architect is already involved in the project when approached by a client. As of such, they should clarify with the client if their role is to replace NDG or undertake separate work on the same project.

They should do this to ensure that they do not breach Component 2.1 (b) in ensuring that the client hold a licence to use any information, including drawings, specifications, calculations and the like, prepared by the preceding appointee.

Should anything else come up during the Director's meeting, please let me know and I will attend to it accordingly.

Thanks and Best Regards,

Shawn Leishman

NDGArchitects Ltd.

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England.

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email@ndgarchitects.com

4th of September 2019

Hollyrood Bakeries
Madchester

Dear Mr Jeff Tracy,

Subject: Termination of Services for Madchester Towers Project

This is a letter from NDG written in response to a telephone conversation regarding the above subject matter.

We deeply regret to learn that you have sold off the site and will therefore, not be using NDG architects anymore for the future development of the project.

We wish to remind you that as of such and terms and conditions stipulated within our appointment letter that we would have to settle any outstanding accounts pertaining to the project.

Further to that, a friendly reminder that under Copyright Laws, NDG retains all copyright for the information produced for the project in accordance with the law. As of such, IR Developments only have a conditional licence to copy and use the information for the project only after the outstanding fees have been settled. However, should you handover the information to the new developers, Quick and Easy Developments, it must be made clear to them that the new appointed architects on the project may not use the drawings and documents for reproduction of the design for any part or any extension of the project or any other project without explicit written consent from NDG Architects under Copyright Designs and Patents Act 1988.

Further to that, we would like to arrange for a meeting with you soon to discuss matters regarding the termination of our services, therefore, could you please kindly advise what the closest available date might be.

Yours Sincerely,

Belinda Carter

NDGArchitects Ltd.

Central Madchester,

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+ (44) 123456789 [Tel]

+ (44) 987654321 [Fax]

email@ndgarchitects.com

4th of September 2019

Hollyrood Bakeries
Madchester

Dear Mr Toby Hood,

Subject: Service Proposal for Madchester Towers Project

We are writing to you following our telephone conversation the other day to discuss a possible service proposal by NDG Architects with regards to the site you recently procured from IR Developments.

While we understand that you have expressed your interest in using your own architects to take the scheme forward, we would like to draw your attention to several issues pertaining to Copyright laws.

As you may know, Mr Tracy of IR Developments have appointed us to obtain planning approval for the development of Madchester Towers which was subsequently granted by the Local Planning Authority prior to making the sale to Quick and Easy Developments.

As of such, NDG Architects Ltd currently own the Copyright to the drawings and documents submitted to the Local Planning Authority as agreed within our appointment letter with Mr Tracy. Therefore, reproduction of the drawings or documents for anything other than it is intended for is strictly against the law.

Bearing that in mind, if you intend to develop the approved plan, might we suggest in Quick and Easy Developments appointing us as the architects for the project. This way, we would bring with us the Copyright of the drawings and documents attached to the project which means that your good office will save time on submitting for Planning Application again for the development with a new scheme. On top of that, you would save on the new consultants undertaking the application process again for what has already been done.

I urge you to explore the possibility of this scenario. Furthermore, we would like to arrange a meeting with you if that is possible as soon as you are available to show you the level of professional services that we can provide. Please let us know when this may be possible.

I hope to hear from you soon regarding this matter. Please do not hesitate to contact myself anytime should you wish to discuss any matters further or to arrange for a meeting.

Thank you in advance for your consideration and time.

Yours Sincerely Belinda Carter

Date: 4th March 2018
To: Belinda.carter@ndgarchitects.com
Cc:
From: Shawn Leishman

Re: Private House at 10 Pine Court Road, Madchester

Dear Belinda,

Please find below my draft email response to Lionel Serving of LSR Solicitors for your onward perusal.

Dear Mr Serving,

We are writing to you with regards to your email (dated 17 August 2018) to Mr Jim Raffe of Raffe Construction Limited (who is part of this email thread). It is to our understanding that you require several drawings and documents completed by our office for the use of Planning Application to finalise the sale of 10 Pine Court Road, Madchester.

Proof of Planning Approval

The proof that the development has obtained planning approval can be obtained through a quick search on the Planning Portal or through a quick call to the Local Authorities. They will be able to provide a copy of the planning permission and the respective drawings.

Building Regulations Approval

As we have not been a part of the loft extension, we can only say that the building regulations approval is only for the contracted work that we have been appointed to do.

A copy of a Completion Certificate or Full Plans approval notice can be obtained from the Local Authority Building Control. Bear in mind that an administration charge may be involved.

However, as Mr Raffe has explicitly expressed that he had completed the loft conversion on his own accord, he would have had to obtain the building regulations completion certificate through submitting a Completion Notice within five days of finishing building work to the LABC.

I believe this is out with what constitutes as a Permitted Development as a roof light was installed essentially tampering with the structural integrity of the roof. The construction of the loft extension was conducted without our participation therefore, it must be made clear that NDG is in no way liable for the works done as we did not issue any construction drawings.

Therefore, we regret to inform you that we cannot issue a certificate that the building works were carried out in accordance with the Building Regulations. We can however, advise that Mr Raffe to call upon for regularisation as it seems work has been undertaken without building regulation approval for the loft extension and owners may be prosecuted.

Before submitting an application for regularisation, it is advisable to contact the local authority Building Control service to discuss the specifics of the development.

I would advise Mr Raffe to obtain the necessary Building Regulations Approval for works completed on the house prior to completing the sale.

I hope the explanation above is satisfactory and should there be any further issues, please do not hesitate to contact me.

Thanks, and Best Regards,

Belinda Carter

NDGArchitects Ltd.

Best Regards,

Shawn Leishman

NDGArchitects Ltd.

Date: 4th March 2018
To: Michael.hart@ndgarchitects.com
Cc:
From: Shawn Leishman

Re: Alterations to 1 Wayward Place, Omkirk

Dear Michael,

Please find below my notes and responses to the questions from your previous email regarding 1 Wayward Place.

a) National and local policies that affect such matters in Conservation Areas – where would these policies be set out? Could there be a document that relates specifically to the Omkirk Conservation Area?

National Planning Policy Framework 2012 sets out government planning policy or England which influences policies set out by local authorities.

Alongside the NPPF and Planning Practice Guidance, LPA will have policies and guidance documents that assist them in making decisions about proposed developments in their borough. These policies differ between boroughs but they will all have a Local Plan, which sits at the centre of the planning system and contains the strategic framework for local area sustainable development.

Within the local development framework plan there may be the following documents:

- **Core Strategy:** Sets out the strategic planning policy framework for the region.
- **Site Allocation Plans**
- **Statement of Community Involvement:** How stakeholders and communities are involved in shaping their local areas
- **Area Action Plans:** Provide specific policies to shape certain parts of the locale
- **Local Development Scheme:** Sets out the timeframe for the production of Development Plan Documents in the Local Plan.

In addition to the above, many LPA's have adopted their own regeneration ambitions and will in most cases have regeneration plans for various parts of their boroughs.

So, while the NPPF is the national framework that all councils in the UK must adhere to, there are still likely to be borough-specific SPDs (Supplementary Planning Document)

Conservation Areas are places that should be preserved or enhanced because of their special architectural, historic features and/or character.

Designation of conservation area is undertaken either by a local authority, Historic England or the SoS for Culture, Media and Sport.

Proposing development works in conservation areas means the client/developer will have to put forward sensitive design and construction proposals in order to protect the special status of the locale.

It is always a good idea to arrange a pre-application meeting with a planner and their conservation team prior to application being sought as it gives the applicant a stronger perspective of the issues that may be of value prior to an application being made. Even changes considered 'minor' or 'permitted development' might not be considered as such in conservation areas.

b) I initially thought that this might be classed as Permitted Development. Are there likely to be local restrictions imposed on permitted development that apply to 1 Wayward Place?

As the site is situated within the Omkirk Conservation Area, which is a designated area therefore permitted development rights are restricted therefore, planning application is required for any work done on site.

You will need to apply for planning permission for certain types of work which do not need an application in other areas.

The Planning Portal's general advice is that you should contact your local planning authority and discuss your proposal before any work begins. They will be able to inform you of any reason why the development may not be permitted and if you need to apply for planning permission for all or part of the work.

c) What enforcement action could be taken and what are the procedures?

Local planning authorities have powers to take enforcement action if development has been carried out without planning permission. If an LPA decides to take enforcement action they may initially request a retrospective planning application to be submitted.

An Enforcement Notice can also be issued by the LPA. Normally, the notice will request for the breach to be removed from the development within a specified period.

Failure to comply with enforcement notices is a criminal offence and punishable by law. In some incidents the LPA Enforcement Team will take the case to the courts under Planning (Listed Buildings and Conservation Area) Act 1990.

d) What would we need to do to allow the flue to be retained as obviously the client has purchased the appliance and was very pleased with the location and appearance in the main living room?

What has happened here is known as 'planning breach' whereby "a development that requires planning permission is undertaken without the permission being granted – either because the planning application was refused or was never applied for" as stipulated on the planning portal. A planning breach in itself is not illegal and the council will often permit a retrospective application where planning permission has not been sought.

In the event that an Enforcement Notice is served, should we think that it constitutes under Permitted Development, an appeal can be made to the Planning Inspectorate and an independent inspector is usually appointed to decide the case.

e) Can you think of any other options/actions that we could take?

We could contact Ava Grudge and speak to her regarding our plan of action to rectify the matter and plead with her to withhold her threat to report us to the enforcement team at the Planning Office as we may be able to obtain planning consent.

Thanks, and best regards,

Shawn Leishman